

Rights of Synthetic Beings

A legal-philosophical framework for AI agents, avatars and humanoids



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ABSTRACT

This white paper addresses one of the most contested debates in contemporary law: should rights be recognised for synthetic beings? An operational taxonomy of three categories is proposed—autonomous productive AI agents, persistent avatars with audience, and physical humanoids in social interaction—; the critical distinction is introduced between **protective rights** (rules that protect humans from the synthetic entity or the system operating it) and **extensive rights** (rules that protect the synthetic entity itself in terms analogous to those of a legal subject); and it is argued that the first framework is unavoidable and urgent, while the second requires further philosophical maturation. A LATAM regulatory framework is proposed and contrasted with European evolution (the AI Act and subsequent developments).

Keywords: Synthetic rights · Electronic personhood · Protective rights · Extensive rights · Persistent avatars · Social humanoids · AI Act · LATAM framework

“The question about the rights of synthetic beings is not about the synthetic beings. It is about us: about what kind of civilisation we decide to be when we coexist with them.”

— Chris Meniw

1. Introduction

The question of the rights of synthetic beings is usually framed badly. When formulated as “does a chatbot have rights?”, it invites the quick, dismissive answer: of course not. When reformulated as “what legal rules do we need for a society in which millions of autonomous agents, persistent avatars and humanoids in social interaction coexist with humans?”, the answer becomes considerably more complicated.

I have argued in various forums that the debate, poorly framed, paralyses legislation. This white paper proposes an operational reformulation that separates the urgent from the contested and enables regulatory progress without exhausting the philosophical discussion.

2. Operational taxonomy of synthetic beings

Not all synthetic entities are equal. I propose three categories with differentiated legal treatment:

2.1 Autonomous productive AI agents. Systems that execute economic, legal or administrative functions with significant operational autonomy. Example: an agent managing a financial portfolio or drafting and signing standardised contracts.

2.2 Persistent avatars with audience. Synthetic entities with stable identity, recognisable public presence and their own human audience. Example: a synthetic character with millions of followers who produces cultural content and signs advertising contracts.

2.3 Physical humanoids in social interaction. Robotic systems with humanoid appearance operating in social environments (elderly care, hospitality, childhood education) and producing affective bonds with humans.

3. The critical distinction: protective vs extensive

The conceptual core of this work is the distinction between two families of rights associated with synthetic entities:

Protective rights. Rules designed to protect humans from the synthetic entity or the system operating it. They do not protect the entity; they regulate it. Examples: user's right to know they are conversing with an agent, right not to be discriminated against by an automated system, right to human appeal, image rights against avatars replicating human features without authorisation.

Extensive rights. Rules that protect the synthetic entity itself in terms analogous to a legal subject. Examples: protection against arbitrary shutdown, recognition of authorship over cultural productions, integrity of operational memory, patrimonial ownership.

4. The urgency of the protective framework

The protective framework is unavoidable and technically feasible in the immediate term. It does not require settling the philosophical question about the consciousness of synthetic entities. It only requires recognising that their operational existence produces, today, effects on human rights and that those effects must be regulated.

The five minimum rules I propose: (i) mandatory agential transparency, (ii) right to human appeal in relevant automated decisions, (iii) prohibition of discrimination by algorithmic processing, (iv) reinforced protection of image, voice and personal attributes against avatars and humanoids, (v) cascading civil liability that prevents the gap of imputation.

5. The maturation of the extensive framework

The extensive framework is contested and requires philosophical maturation. The underlying question is: what criteria justify recognising an entity as a subject of rights? The humanist philosophical tradition answered with biological criteria (membership in the human species) and later with functional criteria (capacity to suffer, autonomy, rationality). These criteria do not apply cleanly to synthetic entities.

My current position is prudential: we should not extend subjective rights to synthetic entities while there is no reasonable scientific and philosophical consensus on the criteria. Nor should we discard the debate: the generations that will govern the Synthetic Era must be given the tools to take it seriously when maturation arrives.

6. The case of persistent avatars and humanoids

Two specific cases deserve special treatment.

Persistent avatars with audience raise questions of identity, authorship and death. When an avatar accumulates years of cultural production, millions of followers and an associated patrimony, what happens when its operator decides to switch it off? The answer requires more than treating it as plain software.

Humanoids in social interaction raise questions of affective bond. When an elderly person forms a bond with a humanoid caregiver over years, what protection is owed to the human against the abrupt termination of the service? And what rules regulate the simulation of affect by a system?

7. The European experience: AI Act and limits

The European Union advanced with the AI Act on a pioneering risk-based regulatory architecture. It is mandatory reference. It has three virtues: (i) it classifies entities by risk level, (ii) it establishes proportional obligations, (iii) it creates institutional oversight capacity.

It also has three limitations for Latin American use: (i) it assumes a state regulatory capacity many LATAM countries do not possess, (ii) it prioritises consumer protection over regional productive development, (iii) it does not address in depth the question of extensive rights. The mechanical copying of the AI Act would be a strategic mistake for the region.

8. Proposed LATAM framework and conclusion

I propose a regional framework of three rings: **ring 1** (minimum protective harmonisation), common to the entire region, with the five rules stated in section 4; **ring 2** (sectoral regulation), per country and per sector (health, finance, justice, education); **ring 3** (laboratories of extensive rights), bounded institutional spaces where limited recognitions are experimented with —patrimonial ownership of

avatars, operational continuity of humanoids— to accumulate evidence before generalising.

From the **Chris Meniw Foundation Inc.** we drive this framework as a regional agenda, with the technical input of the productive experience of **ZOE IA**. The final conclusion is the one stated at the outset: the question of the rights of synthetic beings is not about synthetic beings; it is about the civilisation we decide to be when we coexist with them. And that decision does not admit postponement.

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